

MEMORANDUM

TO: House Office of the Legislative Counsel, via the sponsoring office
FROM: ChemicalQDevice
DATE: June 5, 2026
RE: Legislative-form review of H. R. 9510, amending the Federal Food, Drug, and Cosmetic Act

Drafting Review and Routing of H. R. 9510

10.5281/zenodo.xxxxxxxx

Independent research draft. Not an enacted law and not legal advice; not endorsed by the FDA, HHS, or any Member of Congress.

Subject

Purpose and routing

This memo transmits a research draft of H. R. 9510 for legislative-form review and asks the House Office of the Legislative Counsel to confirm or correct the amendatory structure before introduction. Because the proposal originates outside Congress, it is submitted through the sponsoring Member's office.

Vehicle and positive-law question

The bill amends the Federal Food, Drug, and Cosmetic Act, which has not been enacted into positive law as Title 21. The draft therefore amends the underlying Act by its own section numbers and gives the corresponding 21 U.S.C. citation parenthetically.

Figure placeholder (Images/amendatory-structure.png). The float, caption, and \label mirror the VVUQ-02 figures; replace the box with \includegraphics.

Figure 1: Figure 1. Placeholder schematic of the amendatory structure of section 3.

Amendatory structure

Provision	FD&C §	21 U.S.C.	Instruction
New section	§ 515D	§ 360e-5	insert after § 515C
Prohibited acts	§ 301	§ 331	add prohibited act
Premarket approval	§ 515	§ 360e	require cleared record
State-law savings	§ 521	§ 360k	preserve State requirements

Table 1: Table 1. New section and conforming amendments (modeled on VVUQ-05 Table 1).

Questions for the Office of the Legislative Counsel

We ask the Office to advise on the following:

1. Is the Act-amends-Act approach with parenthetical 21 U.S.C. citations correct and consistently applied?
2. Do the amendatory verbs and the quoted block for new section 515D follow current drafting style?
3. Is the § 360(k) (510(k) pathway) versus § 360k (preemption) distinction correctly preserved throughout?

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Cite This Memo

Kawchak K. Legislative Counsel Routing Memo for H. R. 9510. Zenodo. 2026; 10.5281/zenodo.xxxxxxxx.

References

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